

Geetha P A vs B N Anil Kumar on 19 December, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:46339
CP No. 88 of 2022

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 19TH DAY OF DECEMBER, 2023

BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT

CIVIL PETITION NO. 88 OF 2022

BETWEEN:

GEETHA P A
AGED ABOUT 29 YEARS
R/AT NO.20,
KAVI KESHI RAJA ROAD,
SRINAGAR,
BANASHANKARI 1ST STAGE
BENGALURU-560050.

...PETITIONER

(BY SMT. LATHA SHETTY, ADV.)

AND:

B N ANIL KUMAR
AGED ABOUT 34 YEARS

S/O H.S. NANDAKUMAR
R/AT NO.74/F, 17TH A CROSS
4TH STAGE, 4TH BLOCK
WEST OF CHORD ROAD
BASAVESHWARA NAGAR

BENGALURU- 560079.

...RESPONDENT

(BY SRI. RAVI KUMAR M. B., ADV.)

Digitally
signed by A K
CHANDRIKA
Location:
HIGH COURT
OF
KARNATAKA

THIS PETITION IS FILED UNDER SEC.24 OF CPC, PRAYING TO
A) TRANSFER M.C.81/2021 PENDING BEFORE THE PRINCIPAL
JUDGE, FAMILY COURT, CHIKKABALLAPURA TO FAMILY COURT
BENGALURU. AND B) PASS ANY APPROPRIATE ORDER/S AS DEEMS
FIT IN THE FACTS AND CIRCUMSTANCES OF THE CASE, IN THE
INTEREST OF JUSTICE AND EQUITY.

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NC: 2023:KHC:46339

CP No. 88 of 2022

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE
COURT MADE THE FOLLOWING:

ORDER

Petitioner, wife of respondent is before this Court under Section 24 of CPC with a prayer to transfer M.C.No.81/2021 pending on the file of the Principal Judge, Family Court at Chikkaballapura to the Family Court at Bengaluru.

2. Heard the learned counsel Smt.Latha Shetty for petitioner/wife and learned counsel Sri.J.M.Patil for Sri.Ravi Kumar.M.B., learned counsel for respondent/husband. Perused the Civil Petition papers.

3. It is submitted that marriage of the petitioner and respondent was solemnized on 14.10.2016 and from the marriage, they have one child. It is further submitted that respondent/husband initiated M.C.No.81/2021 on the file of the Principal Judge, Family Court at Chikkaballapura under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 for dissolution of marriage. Further, it is submitted NC: 2023:KHC:46339 that petitioner/wife is not working and she has no income of her own. Hence, she prays for transfer of petition from Chikkaballapura to Bengaluru, since she would not be in a position to travel from Bengaluru to Chikkaballapura.

4. Per contra, learned counsel Sri.J.M.Patil for Sri.Ravi Kumar.M.B., learned counsel for respondent/husband would submit that respondent/husband has no objection to transfer M.C.No.81/2021 pending before the Family Court at Chikkaballapura to the Family Court at Bengaluru.

5. Taking note of the above submission, the following:

ORDER

1) Civil Petition filed under Section 24 of CPC is allowed.

2) The proceedings in M.C.No.81/2021 pending on the file of the Principal Judge Family Court at Chikkaballapura is directed NC: 2023:KHC:46339 to be transferred

to the Court of Principal Judge, Family Court at Bengaluru for further consideration in accordance with law.

Sd/-

JUDGE NC CT:bms